

Arkansas Drug Court Sealing — Stage 1 Process Guidance

Prepared for Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III; case 0123-45-2026-CR-900123.00-AB-CDE/2201.

Selected packet posture: pre-adjudication. The participant must confirm this answer from the case record before using the attached ACIC pair.

Stage 1 is guidance only. Drug-court admission, any prosecutor concurrence, and program completion occur before this packet. The packet does not enroll anyone, negotiate concurrence, or decide whether completion occurred.

Stage 2 begins after completion. This assembly places the applicable official ACIC petition first and its matching proposed order second. Do not mix the pre-adjudication petition with the post-adjudication order, or the reverse.

Before filing: obtain a fingerprint card; obtain and check the Arkansas criminal history when the records step applies; confirm the court, county, charge, completion date, and pre/post posture; complete every classified blank; and sign/date the petition yourself.

Destination: the underlying criminal court. Service in the committed track: serve the prosecuting attorney within three days after filing; the track records a 30-day objection window. Stop for Arkansas legal help if an objection or contested hearing occurs.

Fee and notarization: the committed route says the source review does not state a filing fee, fee-waiver procedure, or notarization requirement, while its review flags preserve conflicts on those points. Confirm those items with the filing court before signing or filing; this packet does not invent an answer.

Self-help also stops if program completion is uncertain, prosecutor concurrence requires negotiation, or immigration, licensing, or firearm consequences are involved.

Blanks this packet left for you to fill in by hand (5)

These values are held for this packet but do not fit their printed blanks at the smallest readable size. The packet left each blank rather than shortening the value or writing over the official form. Write each one on the printed line by hand before you file, or ask the clerk how a value this long is recorded on this form.

Packet page 2 (Petition to Dismiss and Seal Offense in Pre-Adjudication Drug Court Proceeding, form page 1) — the blank printed "vs. Case No. _____". Write: 0123-45-2026-CR-900123.00-AB-CDE/2201

Packet page 4 (Petition to Dismiss and Seal Offense in Pre-Adjudication Drug Court Proceeding, form page 3) — the blank printed "WHEREFORE, the Defendant, _____, prays this". Write: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Packet page 4 (Petition to Dismiss and Seal Offense in Pre-Adjudication Drug Court Proceeding, form page 3) — the blank printed "FURTHER, if applicable, the Defendant, _____". Write: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Packet page 6 (Order to Dismiss and Seal Offense in Pre-Adjudication Drug Court Proceeding, form page 1) — the blank printed "vs. Case No. _____". Write: 0123-45-2026-CR-900123.00-AB-CDE/2201

Packet page 8 (Order to Dismiss and Seal Offense in Pre-Adjudication Drug Court Proceeding, form page 3) — the blank printed "Defendant, _____, to Dismiss the Case and Seal". Write: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Routes: obligation:unit:AR:ar-drug-court:ar-drug-court-stage-1 |
obligation:unit:AR:ar-drug-court:ar-drug-court-stage-2

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. _____

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

DEFENDANT

(First, Middle, and Last name)

**PETITION TO DISMISS AND SEAL OFFENSE IN PRE-ADJUDICATION
DRUG COURT PROCEEDING PURSUANT TO A.C.A. §16-98-303 {AND
TO SEAL SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Comes the Defendant and for his/her petition to dismiss and seal the record states:

1. The defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of:

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. §

_____.

2. With the Defendant's consent and without entering a judgment of guilt, the Court deferred further proceedings and placed the Defendant on probation/court supervision.
3. The terms and conditions of Defendant's probation/court supervision required the successful completion of an approved drug court program.

4. On _____ the Defendant successfully completed the drug court program.
5. The Defendant has received aftercare programming.
6. ☐ The Defendant has no pending felony charge in any state or federal court; or
- ☐ The Defendant has one or more pending felony charge in state or federal court and the status of that/those charges is/are as follows:
- _____
- _____
7. The Defendant has paid all filing fees mandated by A.C.A §16-90-1419.
8. If applicable, on the _____ day of _____, _____, in case number(s) _____ in _____ County _____ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of _____, in violation of A.C.A. § _____.
9. The offense(s) listed in Paragraph 8 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
10. The offense(s) listed in Paragraph 8 above, if any, is/are not:
- i. Residential burglary;
 - ii. Commercial burglary;
 - iii. Breaking or entering; or
 - iv. Fourth and/or subsequent offense of driving while intoxicated.
11. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

12. As evidenced by the signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, _____, prays this Court enter an Order Dismissing and Sealing the above-referenced case pursuant to A.C.A. §16-98-303.

FURTHER, if applicable, the Defendant, _____, prays this Court enter an Order Sealing case number(s) _____ from _____ County _____ Court pursuant to A.C.A. §16-98-303.

Defendant's Signature

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____	Arrest Tracking Number _____
Sex _____	SID No. _____
DOB 12/31/1968 _____	FBI No. (if known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

Defendant Address, Street: 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

City: Unincorporated Township of Long Hollow Crossing State: AR Zip code: 72001-9999

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. _____

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

DEFENDANT

(First, Middle, and Last name)

**ORDER TO DISMISS AND SEAL OFFENSE IN PRE-ADJUDICATION
DRUG COURT PROCEEDING PURSUANT TO A.C.A. §16-98-303 {AND
TO SEAL SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT}**

Before the Court is the Petition of the Defendant to seal his/her record pursuant to A.C.A. 16-98-303. The Court finds and orders as follows:

1. The defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.

2. With the Defendant's consent and without entering a judgment of guilt, the Court deferred further proceedings and placed the Defendant on probation/court supervision.
3. The terms and conditions of the Defendant's probation/court supervision required the successful completion of a drug court program approved by the Court.
4. On _____ the Defendant successfully completed the drug court program.

5. The defendant has received aftercare programming.
6. The prosecuting attorney has recommended to the Court that the above-referenced case be dismissed and that the record be sealed.
7. ☐ The Defendant has no pending felony charges in any state or federal court; or
- ☐ The Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:
- _____
- _____
8. The Defendant has paid all filing fees mandated by A.C.A §16-90-1419.
9. If applicable, on the _____ day of _____, _____, in case number(s) _____ in _____ County _____ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of _____, in violation of A.C.A. § _____.
10. The offense(s) listed in Paragraph 9 above, if any, is/are a target offense as defined in A.C.A. § 16-93-1202(10)(A)(i).
11. The offense(s) listed in Paragraph 9 above, if any, is/are not:
- i. Residential burglary;
 - ii. Commercial burglary;
 - iii. Breaking or entering; or
 - iv. Fourth and/or subsequent offense of driving while intoxicated.
12. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.
13. The defendant ☐ **HAS** or ☐ **HAS NOT** been rehabilitated.
14. The Court has considered the defendant's prior criminal history and has determined that dismissal of the case and sealing of the record is appropriate.

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to Dismiss the Case and Seal the Record in the above-referenced matter pursuant to A.C.A. §16-98-303, should be, and hereby is GRANTED.

IT IS FURTHER ORDERED, if applicable, that the Petition of the Defendant to enter an Order Sealing case number(s) _____ from _____ County _____ Court pursuant to A.C.A. §16-98-303 is hereby GRANTED if concurred to by the Judge of said Court as evidenced by the Judge's signature below.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information Center, the Administrative Office of the Courts, the prosecuting attorney and/or city attorney, the District Court Clerk, if applicable, and the arresting agency. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

Concurred in the Order Sealing case number(s) _____ from
_____ County _____ Court

Judge

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB 12/31/1968 _____

FBI No. (if known) _____